

25CV06454 Je'Ann Savard Birdsell vs Katherine S Hanberg et al

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-08-21

Motion: Demurrers

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Tentative Ruling: Je'Ann Savard Birdsell vs Katherine S Hanberg et al

Case Number

25CV06454

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Demurrers

Tentative Ruling

Concurrently with the filing of answers to plaintiff Je'Ann Savard Birdsell's complaint, on December 31, 2025, defendants Daniel Birdsell and Rachel Birdsell aka Ruben Birdsell separately filed cross-complaints against plaintiff (now cross-defendant). On March 30, 2026, plaintiff and cross-defendant filed demurrers to each of the cross-complaints noticed for hearing on August 14, 2026. On August 4, 2026, cross-complainants each filed their respective first amended cross-complaints. On August 14, the hearing on these demurrers was continued to this date.

"A party may amend its pleading once without leave of the court at any time ... after a demurrer ... is filed but before the demurrer ... is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc., § 472, subd. (a).)

Opposition was due nine court days before August 14, namely, August 3. (See Code Civ. Proc., §§ 12c, 1005, subd. (b).) The amended cross-complaints were therefore late by one day. The court will deem the filing of the amended cross-complaints as

a concession that at least some part of the demurrers had merit. Accordingly, the court will sustain the demurrers to the original cross-complaints with leave to amend and deem the amended cross-complaints as filed pursuant to that leave to amend. Responses to the first amended cross-complaints shall be filed and served within 30 days of the date of this hearing.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

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